

Court No. - 39

Case :- WRIT - C No. - 7225 of 2021

Petitioner :- Mukesh Chandra Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dharmendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Sri Baleshwar Chaturvedi learned counsel for the respondent prays for and is granted three days time to complete his instruction.

Put up this matter on 22.03.2021 as fresh.

Order Date :- 16.3.2021

Himanshu

Court No. - 39

Case :- WRIT - C No. - 7225 of 2021

Petitioner :- Mukesh Chandra Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dharmendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

The challenge to the demand notice and the recovery citation is on the ground that no opportunity of hearing, as required under Section 126 of the Electricity Act, 2003 read with Clause 8.1 of the UP Electricity Supply Code, 2005 had been given to the petitioner before making final assessment in the matter of theft of electricity.

Learned counsel for the respondents, however, disputes the said assertion. It is stated that the provisional assessment notice had been sent to the petitioner through registered post, but no reply to the same has been received.

Copy of the written instructions supplied by the learned counsel for the respondent is taken on record. A copy thereof shall be provided to the learned counsel for the petitioner, who shall complete his instructions within a period of two weeks.

Put up this case as fresh on 08.04.2021.

Order Date :- 22.3.2021

P Kesari

In Residence

Case :- WRIT - C No. - 7225 of 2021

Petitioner :- Mukesh Chandra Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dharmendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Dinesh Pathak,J.

A link has been provided to the counsels for the parties to hear the matter through Video Conferencing.

No one appears for the petitioner.

Learned Standing Counsel for the State respondents are present.

List this matter in ordinary course.

Order Date :- 7.5.2021

Brijesh

Court No. - 3

Case :- WRIT - C No. - 7225 of 2021

Petitioner :- Mukesh Chandra Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dharmendra Singh

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Shekhar B. Saraf,J.

Hon'ble Prashant Kumar,J.

1. The present writ petition has been appearing in the Warning List under the heading "Oldest Pending Cases in this High Court for Priority Hearing".
2. None appears on behalf of the petitioner even in the revised call.
3. Learned Standing Counsel appears on behalf of the State respondents and Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department.
4. Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.
5. The writ petition is disposed of.
6. In the event, the petitioner is of the view that the cause of action still survives, liberty is granted to the petitioner to file an application for recall/variation/modification of this order in accordance with law.

Order Date :- 4.8.2025

Kuldeep

(Prashant Kumar, J.) (Shekhar B. Saraf, J.)